

The Standards for Independent PBM Review — Draft for Counsel Review

Prescription Benefit Solutions · publishes at www.rxbs.org/standards + companion PDF · v1.0 draft, red-team cleared July 21, 2026

What we are asking counsel to review

1. **The five independence criteria (Part 1) as factual attestations about our firm.** We state we meet all five. Confirm each is accurate, complete, and durable as written: no PBM revenue in any form, no ownership entanglement, no contingent placement income, written compensation disclosure, unfiltered findings delivery.
2. **The closing claim "We accept no PBM revenue and hold ourselves to every standard above."** This is the page's load-bearing factual statement about the firm.
3. **The single ERISA characterization** (Part 3: "Under ERISA, the process is the protection") — a general statement about prudent-process fiduciary standards, not legal advice; confirm comfort as phrased.
4. **Part 1.5 / Part 4 language on findings "unfavorable to any incumbent vendor or advisor"** — confirm no disparagement/interference exposure as phrased (no company is named anywhere in the document).

Business deadline: the page is scheduled to publish the first week of August 2026; we would like counsel comments by **August 1, 2026**. It also publishes as a PDF and is cited in September campaign materials, so the language will be widely distributed.

Page copy as it would publish at www.rxbs.org/standards

The Standards for Independent PBM Review

Version 1.0 · Published by Prescription Benefit Solutions · Ginny Crisp, PharmD

Self-funded employers spend more on pharmacy every year, and more of them are asking for an independent review of their PBM contract and claims. That is the right instinct. But "independent review" has no agreed definition, and the market has noticed: reviews are now sold by firms that are owned by brokerages, affiliated with carriers, or compensated by the very vendors they evaluate.

We review PBM contracts and pharmacy claims for a living. This document is our answer to a question clients and brokers ask us constantly: **what should a real independent review require?** These are the standards we hold ourselves to. We are publishing them so any plan sponsor can hold any reviewer, including us, to the same test.

Part 1: Independence criteria

A pharmacy benefit review is independent only if the reviewing firm can answer yes to all five:

1. **No PBM revenue.** The reviewer accepts no compensation, directly or indirectly, from any pharmacy benefit manager: no consulting fees, no data fees, no rebate-aggregation participation, no implementation allowances.
2. **No ownership entanglement.** The reviewer is not owned by, and does not own, a brokerage, carrier, PBM, or vendor whose economics are affected by the review's findings.

3. **No contingent placement income.** The reviewer's compensation does not depend on which PBM, carrier, or vendor the plan ultimately selects.
4. **Disclosed compensation, in writing.** The plan sponsor can see every dollar the reviewer earns from the engagement, and from whom, before work begins.
5. **Findings owned by the plan.** The complete findings, including everything unfavorable to any incumbent vendor or advisor, are delivered to the plan sponsor without filtering by any third party.

A reviewer who fails any one of these can still be useful. They cannot be independent, and their findings should be weighed accordingly.

Part 2: Minimum scope of a real review

A review that only benchmarks pricing is a quote, not a review. At minimum, an independent PBM review examines:

1. **The definitions.** What the contract means by rebate, generic, specialty, brand, claim, and pass-through, because the definitions decide where the money goes before any guarantee applies.
2. **Pricing-guarantee reconciliation.** Whether the guaranteed rates were actually achieved, measured against the contract's own math, not the PBM's summary reporting.
3. **The rebate flow.** What the plan is promised, what is excluded by definition, and what intermediaries sit between the manufacturer's payment and the plan's credit.
4. **Channel and specialty routing.** Where prescriptions are being directed, and what the same drug costs the plan in each channel.
5. **Audit and termination rights.** Whether the plan can verify any of the above, and whether it can leave if the answers are bad.

Part 3: What the plan sponsor should receive

1. **A written findings report** with the dollar magnitude of each gap, stated so a finance committee can act on it.
2. **A prudent-process record.** Documentation of what was reviewed, when, by whom, and what was decided, in a form the plan's fiduciaries can retain. Under ERISA, the process is the protection.
3. **A recommendation with a path.** Optimize the current relationship through amendments, or take the plan to market, with the reasoning shown.
4. **The reviewer's independence attestation** against Part 1, in writing.

Part 4: Questions any plan sponsor should ask any reviewer

Who pays you, for this engagement and otherwise? Put it in writing.

Do you or your owners earn anything from any PBM, carrier, or vendor we might select?

Will we receive your complete findings, including anything unfavorable to our current vendors or advisors?

What does your review examine beyond price benchmarking?

What documentation will our fiduciary file contain when you are done?

A firm that welcomes these questions is the firm you want reviewing your contract.

Prescription Benefit Solutions is an independent pharmacy benefits consultancy in Charleston, South Carolina. We accept no PBM revenue and hold ourselves to every standard above. Version 1.0 of these standards was published in 2026; we revise them annually as contract practices evolve. www.rxbs.org